

BEFORE THE FEDERAL MARITIME COMMISSION

INTERMODAL MOTOR CARRIERS CONFERENCE,	)	
AMERICAN TRUCKING ASSOCIATIONS, INC.	)	
	)	
Complainant,	)	
	)	
v.	)	
	)	FMC Docket No. 20-14
OCEAN CARRIER EQUIPMENT MANAGEMENT	)	
ASSOCIATION, INC.; CONSOLIDATED CHASSIS	)	
MANAGEMENT, LLC; CMA CGM S.A.; COSCO	)	
SHIPPING LINES CO. LTD.; EVERGREEN LINE	)	
JOINT SERVICE AGREEMENT, FMC NO. 011982;	)	
HAPAG-LLOYD AG; HMM CO. LTD.; MAERSK	)	
A/S; MSC MEDITERRANEAN SHIPPING	)	
COMPANY S.A.; OCEAN NETWORK EXPRESS	)	
PTE. LTD.; WAN HAI LINES LTD.; YANG MING	)	
MARINE TRANSPORT CORP.; AND	)	
ZIM INTEGRATED SHIPPING SERVICES,	)	
	)	
Respondents.	)	
	)	

**ANSWER OF RESPONDENT HAPAG-LLOYD AG
TO THE VERIFIED COMPLAINT**

Respondent Hapag-Lloyd AG (“Hapag-Lloyd”), by and through its undersigned counsel, hereby answers the Verified Complaint of INTERMODAL MOTOR CARRIERS CONFERENCE and AMERICAN TRUCKING ASSOCIATIONS, INC. (collectively, “Complainant”) as follows.

INTRODUCTORY STATEMENT AND GENERAL DENIAL

The Complaint, rather than being a clear and concise factual statement of Complainant’s claims, is an amalgam of conclusory statements, vague and undefined terminology, select quotations from hearsay documents, and legal conclusions. The paragraphs of the Complaint frequently contain numerous separate points and allegations, lengthy narrative aversions, lack of

precision and mischaracterizations of organizations, and other matter of questionable form and substance, making specific responses very difficult. The form of the Complaint imposes an undue burden upon Hapag-Lloyd to answer within the rules governing pleadings.

Hapag-Lloyd accordingly, generally denies the matters alleged by the Complainant and, to the best of its ability, sets forth the below specific responses to the numbered paragraphs of the Complaint.

1. Denies the allegations in Paragraph 1 alleged against Hapag-Lloyd, as they constitute legal conclusions, to which no response is required, and to the extent a response is required, Hapag-Lloyd denies the allegations. Hapag-Lloyd lacks sufficient information or knowledge to respond to the allegations against the other Respondents, and therefore denies those allegations.

2. Admits that the Consolidated Chassis Management Pool Agreement was filed in 2006 with the Federal Maritime Commission (“Agreement”), which document speaks for itself. Except as admitted, Hapag-Lloyd lacks sufficient information or knowledge to respond to whether OCEMA members sold their chassis to third-party providers and denies the remaining allegations of Paragraph 2 of the Complaint.

3. Denies the allegations in Paragraph 3 alleged against Hapag-Lloyd, as they constitute legal conclusions, to which no response is required, and to the extent a response is required, Hapag-Lloyd denies the allegations. Hapag-Lloyd lacks sufficient information or knowledge to respond to the allegations against the other Respondents, and therefore denies the allegations against the other Respondents.

4. Denies the allegations in Paragraph 4 against Hapag-Lloyd, as they constitute legal conclusions, to which no response is required, and to the extent a response is required, Hapag-Lloyd denies the allegations. Hapag-Lloyd lacks sufficient information or knowledge to respond

to the allegations against the other Respondents, and therefore denies the allegations against the other Respondents.

5. Denies the allegations in Paragraph 5 against Hapag-Lloyd, as they constitute legal conclusions to which no response is required, and to the extent a response is required, Hapag-Lloyd denies the allegations. Hapag-Lloyd lacks sufficient information or knowledge to respond to allegations against the other Respondents and therefore denies the allegations.

6. Hapag-Lloyd lacks sufficient information or knowledge to respond to Paragraph 6 of the Complaint, and therefore denies the allegations. .

7. Hapag-Lloyd admits that OCEMA is a District of Columbia non-profit corporation and denies the remaining allegations of the first sentence of Paragraph 7 of the Complaint. Hapag-Lloyd admits the allegations in the second sentence of Paragraph 7 of the Complaint. Admits only that the third and fourth sentences of Paragraph 7 of the Complaint as the OCEMA website referenced therein speaks for itself. Admits based on information and belief that OCEMA reaches agreements on policies relating to the operation of Chassis Pools, and denies the remaining allegations in the fifth sentence of Paragraph 7 of the Complaint. Admits only that the sixth sentence of Paragraph 7 of the Complaint, as to the OCEMA website referenced therein, speaks for itself. Hapag-Lloyd lacks sufficient information or knowledge to respond to the seventh sentence of paragraph 7 of the Complaint, as it does not specify the “Respondent” to which it is referring. Hapag-Lloyd denies the seventh sentence of the Complaint, if OCEMA is the “Respondent” to whom this allegation is referring.

8. Hapag-Lloyd admits that CCM is a Delaware limited liability company, with headquarters located at 500 International Drive, Suite 130, Budd Lake, NJ 07828. Hapag-Lloyd denies that mwilson@ccmpool.com is the email address of CCM, but admits that it is the email

address of a CCM employee. Admits only that the CCMP Agreement and the CCM website, referenced therein, speak for themselves.

9. Hapag-Lloyd lacks sufficient information or knowledge to respond to the allegations of Paragraph 9, against the other Respondents, and therefore denies the allegations.

10. Hapag-Lloyd lacks sufficient information or knowledge to respond to the allegations of Paragraph 10, against the other Respondents, and therefore denies the allegations.

11. Hapag-Lloyd lacks sufficient information or knowledge to respond to the allegations of Paragraph 11, against the other Respondents, and therefore denies the allegations.

12. Hapag-Lloyd admits the first, second, third, and fourth sentences of Paragraph 12 of the Complaint. Hapag-Lloyd admits, concerning the fifth sentence of Paragraph 12, that Hapag-Lloyd and/or its affiliate(s) are members of the OCEMA Agreement and party to the CCMP Agreement, and, concerning the sixth sentence, that Thomas.barattini@hlag.com is the email address of a Hapag-Lloyd employee and denies the remaining allegations of Paragraph 12 of the Complaint.

13. Hapag-Lloyd lacks sufficient information or knowledge to respond to the allegations of Paragraph 13, against the other Respondents, and therefore denies the allegations.

14. Hapag-Lloyd lacks sufficient information or knowledge to respond to the allegations of Paragraph 14, against the other Respondents, and therefore denies the allegations.

15. Hapag-Lloyd lacks sufficient information or knowledge to respond to the allegations of Paragraph 15, against the other Respondents, and therefore denies the allegations.

16. Hapag-Lloyd lacks sufficient information or knowledge to respond to the allegations of Paragraph 16, against the other Respondents, and therefore denies the allegations.

17. Hapag-Lloyd lacks sufficient information or knowledge to respond to the allegations of Paragraph 17, against the other Respondents, and therefore denies the allegations.

18. Hapag-Lloyd lacks sufficient information or knowledge to respond to the allegations of Paragraph 18, against the other Respondents, and therefore denies the allegations.

19. Hapag-Lloyd lacks sufficient information or knowledge to respond to the allegations of Paragraph 19, against the other Respondents, and therefore denies the allegations.

20. The allegations in Paragraph 20 constitute legal conclusions, to which no response is required. To the extent a response is required, Hapag-Lloyd denies the allegations of the first sentence of Paragraph 20 of the Complaint and, as to the second sentence, admits only that the Shipping Act speaks for itself.

21. The allegations of the first, third and fourth sentences of Paragraph 21 constitute legal conclusions, to which no response is required, and, as to the second sentence, admits only that FMC Agreement No. 011282 speaks for itself.

22. Admits only that the *Intermodal Factbook*, referenced in Paragraph 22 of the Complaint, speaks for itself, and denies the remaining averments in Paragraph 22 of the Complaint.

23. Paragraph 23 makes no allegations against, or which, are specific to Hapag-Lloyd, and Hapag-Lloyd is without information of belief sufficient to answer the remaining averments in Paragraph 23 and therefore denies the averments contained therein.

24. Paragraph 24 makes no allegations against, or which, are specific to Hapag-Lloyd, and Hapag-Lloyd is without information or belief sufficient to answer the remaining averments in Paragraph 24 and therefore denies the averments contained therein.

25. Paragraph 25 makes no allegations against, or which, are specific to Hapag-Lloyd, and Hapag-Lloyd is without information or belief sufficient to answer the averments in Paragraph 25

and therefore denies the averments contained therein, except that, as to the third sentence of Paragraph 25, Hapag-Lloyd admits that it has “owned or directly leased” chassis in the United States.

26. Admits only that the IANA publication, referenced in the first sentence of Paragraph 26, speaks for itself and denies the remaining allegations of Paragraph 26 of the Complaint.

27. Admits only that the IANA publication, referenced in the second sentence of Paragraph 27, speaks for itself. Hapag-Lloyd denies the allegations in the third sentence of Paragraph 27, as to itself, and, Hapag-Lloyd is without information or belief sufficient to answer the remaining averments in Paragraph 27, as to other parties, and therefore denies the remaining averments contained therein.

28. Admits only that the referenced *Surface Transportation Board Oversight Hearing on Demurrage and Accessorial Charges and Operational and Commercial Changes in the Chassis World referred to in the first and second sentences of Paragraph 28* speak for themselves. Hapag-Lloyd admits that it does not own chassis in the United States and lacks sufficient information or knowledge to answer the remaining averments in Paragraph 28 of the Complaint and therefore denies the remaining averments contained therein.

29. Admits that TRAC Intermodal, Direct ChassisLink Inc. and Flexi-Van lease chassis. Hapag-Lloyd lacks sufficient information or knowledge to answer the remaining averments in Paragraph 29 of the Complaint, and therefore denies the remaining averments contained therein.

30. Paragraph 30 makes no allegations against, or which, are specific to Hapag-Lloyd. Hapag-Lloyd lacks sufficient information or knowledge to answer the remaining averments in Paragraph 30 of the Complaint and therefore denies the remaining averments contained therein.

31. Hapag-Lloyd admits only that the documents, referenced in Paragraph 31 of the Complaint, speak for themselves and lacks sufficient information or knowledge to answer the remaining averments in Paragraph 31 of the Complaint, and therefore denies the remaining averments contained therein.

32. Hapag-Lloyd admits only that the filed FMC agreements, referenced in Paragraph 32 of the Complaint, speak for themselves and denies the remaining averments contained in Paragraph 32 of the Complaint.

33. Hapag-Lloyd admits only that the filed FMC agreement, referenced in Paragraph 33 of the Complaint, speaks for itself and denies the remaining averments contained in Paragraph 33 of the Complaint.

34. Hapag-Lloyd admits only that the filed FMC agreement, referenced in Paragraph 34 of the Complaint, speaks for itself and denies the remaining averments contained in Paragraph 34 of the Complaint.

35. Hapag-Lloyd admits only that the filed FMC agreement, referenced in Paragraph 35 of the Complaint, speaks for itself and denies the remaining averments contained in Paragraph 35 of the Complaint.

36. Hapag-Lloyd admits only that the filed FMC agreements, referenced in Paragraph 36 of the Complaint, speak for themselves and denies the remaining averments contained in Paragraph 36 of the Complaint.

37. Hapag-Lloyd admits only that the documents, referenced in Paragraph 37 of the Complaint, speak for themselves and lacks sufficient information or knowledge to answer the remaining averments in Paragraph 37 of the Complaint, and therefore denies the remaining averments contained therein.

38. Hapag-Lloyd admits only that the Master Chassis Contribution Agreement, referenced in Paragraph 38 of the Complaint, speaks for itself and lacks sufficient information or knowledge to answer the remaining averments in Paragraph 37 of the Complaint, and therefore denies the remaining averments contained therein

39. Hapag-Lloyd admits only that the 2019 report of the Memphis Supply Chain Innovation Team, referenced in Paragraph 39 of the Complaint, speaks for itself and Hapag-Lloyd lacks sufficient information or knowledge to answer the remaining averments in Paragraph 39 of the Complaint and therefore denies the remaining averments contained therein. .

40. Hapag-Lloyd admits only that the statement of Commissioner Rebecca Dye, referenced in Paragraph 40 of the Complaint, speaks for itself and Hapag-Lloyd lacks sufficient information or knowledge to answer the remaining averments in Paragraph 40 of the Complaint, and therefore denies the remaining averments contained therein.

41. Hapag-Lloyd lacks sufficient information or knowledge to answer the averments in Paragraph 41 of the Complaint, concerning alleged expressions and articulations of OCEMA, and therefore denies the averments contained therein.

42. Hapag-Lloyd admits only that the document, referenced in Paragraph 42 of the Complaint, *Interoperability Matters! The Interoperable Gray Pool Model, Enhancing Supply Chain Efficiencies*, speaks for itself. Hapag-Lloyd denies that statements by CCM are attributable to OCEMA and lacks sufficient information or knowledge to answer the allegations of points attributed to either CCM or OCEMA. The last two sentences of Paragraph 42 constitute legal conclusions, to which no response is required, and to the extent a response is required, Hapag-Lloyd denies the allegations therein.

AS TO THE CLAIMS OF UNJUST AND UNREASONABLE CONDUCT

43. Denies the allegations in Paragraph 43 alleged against Hapag-Lloyd, as they constitute legal conclusions, to which no response is required, and to the extent a response is required, Hapag-Lloyd denies the allegations therein. Further, denies that ocean carriers are members of pools managed by CCM.

44. Hapag-Lloyd admits only that the document referenced in Paragraph 44 of the Complaint, “the CCMP Operations Manual,” speaks for itself. Denies the second sentence of Paragraph 44 because the quotation from the CCMP Operations Manual is supplemented by bracketed commentary that renders the quotation and allegation incorrect and misleading. Further, denies the remaining allegations of Paragraph 44 as to Hapag-Lloyd as they constitute legal conclusions, to which no response is required, and, to the extent a response is required, Hapag-Lloyd denies the allegations. Hapag-Lloyd lacks sufficient information or knowledge to respond to the remaining averments in Paragraph 44 of the Complaint and therefore denies the remaining averments contained therein.

45. Hapag-Lloyd lacks sufficient information or knowledge to respond to the allegations and purported quotation in Paragraph 45 of the Complaint, and therefore denies the averments contained therein.

46. Hapag-Lloyd admits only that the website listing referenced in Paragraph 46 of the Complaint exists, and that the CCM website speaks for itself, but lacks sufficient information or knowledge to respond to the remaining averments in the first, second and third sentences of Paragraph 46 of the Complaint, and therefore denies the remaining averments contained therein. Hapag-Lloyd lacks sufficient information or knowledge to respond to the allegations of the fourth and fifth sentences of Paragraph 46 of the Complaint. Hapag-Lloyd denies the allegations

in the sixth sentence as they constitute legal conclusions, to which no response is required, and, to the extent a response is required, Hapag-Lloyd denies the allegations.

47. Hapag-Lloyd admits only that the Commissioner Dye Statements, referenced in the second and third sentences of Paragraph 47, speak for themselves. Hapag-Lloyd denies the first sentence of Paragraph 47 of the Complaint as to Hapag-Lloyd, and lacks sufficient information or knowledge to respond to the remaining averments in Paragraph 47 of the Complaint, and therefore denies the remaining averments contained therein.

48. Hapag-Lloyd denies the allegations of Paragraph 48 of the Complaint against Hapag-Lloyd, as they constitute legal conclusions to which no response is required, and to the extent a response is required, Hapag-Lloyd denies the allegations. Hapag-Lloyd lacks sufficient information or knowledge to respond to the remaining allegations of Paragraph 48 against the other Respondents, and therefore denies the allegations.

49. Hapag-Lloyd denies the allegations of Paragraph 49 of the Complaint against Hapag-Lloyd, and lacks sufficient information or knowledge to respond to the remaining averments in Paragraph 49 of the Complaint, and therefore denies the remaining averments contained therein.

50. Hapag-Lloyd denies the allegations in the first and third sentences of Paragraph 50 of the Complaint against Hapag-Lloyd, as they constitute legal conclusions to which no response is required, and to the extent a response is required, Hapag-Lloyd denies the allegations. Hapag-Lloyd lacks sufficient information or knowledge to respond to the allegations in the first and third sentences of Paragraph 50 against the other Respondents. Hapag-Lloyd admits only that the referenced *Interpretative Rule on Demurrage and Detention Under the Shipping Act* speaks for itself, and denies the remaining averments in Paragraph 50 of the Complaint.

51. Hapag-Lloyd denies the allegations of the first sentence of Paragraph 51 of the Complaint and lacks sufficient information or knowledge to respond to the allegations of the second sentence of Paragraph 51 of the Complaint, and therefore denies the allegations.

52. Hapag-Lloyd admits the allegations of the first sentence of Paragraph 52 only as to Hapag-Lloyd. Hapag-Lloyd denied the allegations of the second sentence of Paragraph 52 as to Hapag-Lloyd. Hapag-Lloyd denies the allegations of Paragraph 52 of the Complaint against Hapag-Lloyd. Hapag-Lloyd lacks sufficient information or knowledge to respond to the allegations of Paragraph 52 against the other Respondents, and therefore denies the allegations.

53. Hapag-Lloyd denies the allegations of Paragraph 53 of the Complaint as to Hapag-Lloyd, as they constitute legal conclusions to which no response is required, and to the extent a response is required, Hapag-Lloyd denies the allegations as to Hapag-Lloyd. Hapag-Lloyd lacks sufficient information or knowledge to respond to the remaining allegations of Paragraph 53 alleged against the other Respondents, and therefore denies the allegations.

54. Hapag-Lloyd denies the allegations of Paragraph 54 of the Complaint as to Hapag-Lloyd, as they constitute legal conclusions to which no response is required, and to the extent a response is required, Hapag-Lloyd denies the allegations as to Hapag-Lloyd. Hapag-Lloyd lacks sufficient information or knowledge to enable it to respond to the remaining allegations of Paragraph 54 alleged against the other Respondents, and therefore denies the allegations.

55. Hapag-Lloyd admits that the “Pool-of-Pools” was established in the Ports of Long Beach and Los Angeles, based on information and belief, by IEPs, but lacks sufficient information or knowledge to respond to the remaining allegations of the first sentence of Paragraph 55 of the Complaint, including as to the term “interoperable,” the meaning of which is vague and not

defined. As to the second sentence, Hapag-Lloyd admits only that the referenced Pool of-Pools website speaks for itself.

56. Hapag-Lloyd denies the allegations of Paragraph 56 alleged against Hapag-Lloyd, as they constitute legal conclusions to which no response is required, and to the extent a response is required, Hapag-Lloyd denies the allegations as to Hapag-Lloyd. Hapag-Lloyd lacks sufficient information or knowledge to admit or deny the remaining allegations of Paragraph 56 against the other Respondents and therefore denies the allegations. The referenced Trac Intermodal and Pool of Pool websites speak for themselves.

**AS TO THE CLAIMS OF UNJUST AND
UNREASONABLE REGULATIONS AND PRACTICES**

57. Hapag-Lloyd denies the allegations of Paragraph 57 of the Complaint as it consists of conclusory statements and legal conclusions and lacks sufficient specificity to enable Hapag-Lloyd to form a response thereto. Hapag-Lloyd lacks sufficient information or knowledge to respond to the remaining allegations of Paragraph 57 against the other Respondents, and therefore denies the allegations.

58. Hapag-Lloyd lacks sufficient information or knowledge to respond to the remaining allegations of Paragraph 58 against the other Respondents, and therefore denies the allegations.

59. Hapag-Lloyd lacks sufficient information or knowledge to respond to the remaining allegations of Paragraph 59 against the other Respondents, and therefore denies the allegations.

60. Hapag-Lloyd lacks sufficient information or knowledge to respond to the remaining allegations of Paragraph 60 against the other Respondents, and therefore denies the allegations.

61. Hapag-Lloyd denies the allegations of Paragraph 61 of the Complaint.

62. Hapag-Lloyd lacks sufficient information or knowledge to respond to the remaining allegations of Paragraph 62 against the other Respondents, and therefore denies the allegations.

63. Hapag-Lloyd lacks sufficient information or knowledge to respond to the remaining allegations of Paragraph 63 against the other Respondents, and therefore denies the allegations.

64. Hapag-Lloyd lacks sufficient information or knowledge to respond to the remaining allegations of Paragraph 64 against the other Respondents, and therefore denies the allegations.

65. Hapag-Lloyd lacks sufficient information or knowledge to respond to the remaining allegations of Paragraph 65 against the other Respondents, and therefore denies the allegations.

66. Hapag-Lloyd lacks sufficient information or knowledge to respond to the remaining allegations of Paragraph 66 against the other Respondents, and therefore denies the allegations.

67. Hapag-Lloyd lacks sufficient information or knowledge to respond to the remaining allegations of Paragraph 67 against the other Respondents, and therefore denies the allegations.

68. Hapag-Lloyd lacks sufficient information or knowledge to respond to the remaining allegations of Paragraph 68 against the other Respondents, and therefore denies the allegations.

69. Hapag-Lloyd denies the allegations of Paragraph 69 alleged against Hapag-Lloyd. Hapag-Lloyd lacks sufficient information or knowledge to respond to the remaining allegations of Paragraph 69 against the other Respondents, and therefore denies the allegations.

**AS TO THE CAUSE OF ACTION THAT RESPONDENTS'
REGULATIONS AND PRACTICES VIOLATE 46 U.S.C. § 41102(C)**

70. Hapag-Lloyd repeats and realleges each and every admission, denial, and denial of knowledge or information made in response to the allegations of Paragraph 1 through 69 of the Complaint, as if the same were set forth at length herein.

71. Denies the allegations of Paragraph 71, as they constitute legal conclusions to which no response is required, and to the extent a response is required, Hapag-Lloyd denies the allegations.

72. Denies the allegations of Paragraph 72, as they constitute legal conclusions to which no response is required, and to the extent a response is required, Hapag-Lloyd denies the allegations.

73. Denies the allegations of Paragraph 73, as they constitute legal conclusions to which no response is required, and to the extent a response is required, Hapag-Lloyd denies the allegations.

74. Denies the allegations of Paragraph 74, as they constitute legal conclusions to which no response is required, and to the extent a response is required, Hapag-Lloyd denies the allegations.

75. Denies the allegations of Paragraph 75, as they constitute legal conclusions to which no response is required, and to the extent a response is required, Hapag-Lloyd denies the allegations.

76. Denies the allegations of Paragraph 76, as they constitute legal conclusions to which no response is required, and to the extent a response is required, Hapag-Lloyd denies the allegations.

77. Denies the allegations of Paragraph 77, as they constitute legal conclusions to which no response is required, and to the extent a response is required, Hapag-Lloyd denies the allegations.

78. Denies the allegations of Paragraph 78, as they constitute legal conclusions to which no response is required, and to the extent a response is required, Hapag-Lloyd denies the allegations.

79. Denies the allegations of Paragraph 79, as they constitute legal conclusions to which no response is required, and to the extent a response is required, Hapag-Lloyd denies the allegations.

AS TO THE CLAIM OF INJURY

80. Denies the allegations of Paragraph 80, as they constitute legal conclusions to which no response is required, and to the extent a response is required, Hapag-Lloyd denies the allegations.

81. Denies the allegations of Paragraph 81, as they constitute legal conclusions to which no response is required, and to the extent a response is required, Hapag-Lloyd denies the allegations.

82. Denies the allegations of Paragraph 82 as they constitute legal conclusions to which no response is required, and to the extent a response is required, Hapag-Lloyd denies the allegations.

AS TO THE PRAYER FOR RELIEF

Complainant's Prayer for Relief contains legal conclusions and does not contain allegations, to which an answer is required. To the extent that a response is necessary, Hapag-Lloyd denies the allegations of the Complaint and denies the allegations praying for relief.

AFFIRMATIVE DEFENSES

1. The Federal Maritime Commission lacks subject matter jurisdiction.
2. Complainant has failed to join indispensable parties.
3. Complainant has failed to state a claim upon which relief can be granted.
4. Complainant has failed to allege sufficient facts to state a claim for relief.

5. Complainant lacks standing.
6. Complainant did not suffer any actual injury.
7. Complainant fails to demonstrate causation for its alleged injury.
8. The Federal Maritime Commission lacks jurisdiction over Respondents, Ocean Carrier Equipment Management Association, Inc. and Consolidated Chassis Management, LLC.
9. Complainant's claims are barred in whole or in part by the doctrines of waiver, estoppel and/or laches.
10. Complainant's claims are barred by the doctrine of unclean hands.
11. Complainant's claims are barred in whole or in part by reason of ratification, agreement, or consent to the alleged conduct by Complainant and/or its members.
12. Respondent reserves the right to assert any additional affirmative defenses that may develop through further discovery in this proceeding.

WHEREFORE Respondent, Hapag-Lloyd AG, prays that the Complaint in this proceeding be dismissed with prejudice.

Respectfully submitted,

HOLLAND & KNIGHT LLP

By: 

Counsel for Respondent Hapag-Lloyd AG
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DATED: February 18, 2021

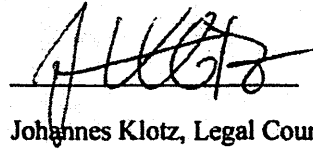
VERIFICATION

I, Johannes Klotz, hereby verifies as follows:

1. I am Legal Counsel at Hapag-Lloyd AG.
2. I am authorized to make this verification on behalf of the Respondent Hapag-Lloyd AG.
3. I hereby verify that the facts contained in the foregoing answer and affirmative defenses are true and correct to the best of my knowledge, information, and belief.
4. I verify the foregoing under penalty of perjury under the laws of the United States.

Dated February 18, 2021

Respectfully submitted,

A handwritten signature in black ink, appearing to read 'J. Klotz', is written over a horizontal line.

Johannes Klotz, Legal Counsel